

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 1
Honorable Eunice Lee, Presiding
TBD, Courtroom Clerk
191 North First Street, San Jose, CA 95113

DATE: July 21, 2026 TIME: 9:00 A.M. and 9:01 A.M.

**To contest the ruling, call the Court at (408) 808-6856 before 4:00 P.M.
Make sure to also let the other side know before 4:00 P.M. that you plan to contest the ruling,
in accordance with California Rule of Court, Rule 3.1308(a)(1) and Local Rule 8D.**

****Please specify the issue to be contested when calling the Court and counsel****

LAW AND MOTION TENTATIVE RULINGS

9:00 A.M.			
<u>LINE 1</u>	21CV392006	Cuong Quach vs Maxreal Cupertino et al	Demurrer Parties to appear. Given that plaintiff's counsel Thomas Spielbauer cannot represent the plaintiff at this time, the demurrer is continued. Parties to appear to discuss scheduling. On October 28, 2025, defendants Agent Realty and Finance, Fuzhou Wu, Yan Zhang, Jian Qiang Huang, and Kok Jin Yeo filed this demurrer to Plaintiff Cuong Quach's Third Amended Complaint ("TAC"). The motion is accompanied by a proof of electronic service upon Plaintiff's counsel on October 28, 2025. Pursuant to Code of Civil Procedure section 430.10, a party may demur to a complaint on the grounds that it "does not state facts sufficient to constitute a cause of action." (Code Civ. Proc., § 430.10, subd. (e)). A demurrer tests whether the complaint states a cause of action. (<i>Hahn v. Mirda</i> (2007) 147 Cal.App.4th 740, 747 (<i>Hahn</i>)). When considering demurrers, courts accept all well pleaded facts as true. (<i>Fox v. JAMDAT Mobile, Inc.</i> (2010) 185 Cal.App.4th 1068, 1078). In ruling on a demurrer, the Court treats it "as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law." (<i>Piccinini v. Cal. Emergency Management Agency</i> (2014) 226 Cal.App.4th 685, 688, citing <i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318 (<i>Blank</i>)). No opposition papers were filed. Per Code of Civil Procedure section 1005(b) opposition papers were due on July 8, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (<i>Laguna Auto Body v. Farmers Ins. Exchange</i> (1991) 231 Cal.App.3d 481, 489).

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LAW AND MOTION TENTATIVE RULINGS

LINE 2	23CV416519	Linda Lisner vs City of San Jose et al	Motion for Order for Admissions Deemed Admitted & Sanctions Scroll down to Line 2 for Tentative Ruling.
LINE 3	23CV421976	Community Education Foundation vs George Eshoo et al	Motion to Tax Cost OFF CALENDAR. On December 10, 2025, Defendants' 32 & Bruce Partners, LLC and George Eshoo ("Defendants") filed a joint notice of a motion to strike or tax plaintiff Community Education Foundation ("CEF")'s amended memorandum of prejudgment costs; and request for attorney's fees and sanctions. Defendants did not file a memorandum of points and authorities in support of the motion, Declaration in support, or any other supporting papers. Code of Civil Procedure section 1005 requires that the moving papers must be served at least 16 court days prior to the hearing date. California Rule of Court, Rule 3.1112 requires that a motion be accompanied by a memorandum of points and authorities, support Declaration and exhibits, and proof of service. Plaintiff opposes the motion on the grounds that the defendants have failed to serve supporting papers. On July 17, 2026, moving party filed a motion to withdraw the motion. Due to the number of procedural violations, the defendants motion is DENIED without prejudice.
LINE 4	24CV442732	Rolan Estrada vs Ron Estrada	Motion to Appoint Appraiser to Determine Fair Market Value Scroll down to Line 4 for Tentative Ruling.
LINE 5	24CV448023	Itria Ventures LLC et al vs Shivendra Basnet et al	Motion for Attorney's Fees and Costs Scroll down to Line 5 for Tentative Ruling.
LINE 6	24CV451194	Anson Vasquez vs Tyler Stayskal et al	Motion to Compel Responses to Form Interrogatories and Request for Production of Documents, Set One; and Sanctions Scroll down to Line 6 for Tentative Ruling.